IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

No. 26-14135-D

SERGE NKORINA,
Petitioner-Appellant,

v.

UNITED STATES OF AMERICA,
Respondent-Appellee.

On Appeal from the United States District Court
for the Southern District of Florida
No. 1:25-cv-25405-CMA (Crim. No. 1:19-cr-20261-CMA)

APPELLANT'S APPLICATION FOR A CERTIFICATE OF APPEALABILITY

Serge Nkorina, Reg. No. 26432-509
Federal Correctional Institution — Miami
Inmate Mail/Parcels, P.O. Box 779800
Miami, FL 33177
Petitioner-Appellant, Pro Se

CERTIFICATE OF INTERESTED PERSONS AND CORPORATE DISCLOSURE STATEMENT

Under Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rules 26.1-1 through 26.1-3, Petitioner-Appellant Serge Nkorina certifies that the following persons and entities have an interest in the outcome of this appeal:

Altonaga, Cecilia M., Chief United States District Judge, Southern District of Florida

Boccio, Justin, co-defendant in No. 1:19-cr-20261-CMA

Chattah, Marc, Assistant United States Attorney

Demanovich, Stephen James, Assistant United States Attorney

Doty, George Espy, III, Assistant United States Attorney

Federal Public Defender's Office, Southern District of Florida (counsel for co-defendant)

Grove, Daren, Assistant United States Attorney

Guerra Johansson, Omar F., stand-by counsel for Petitioner-Appellant in No. 1:19-cr-20261-CMA

Johansson & Lopez Attorneys PA

Lange, Kenneth T., counsel for co-defendant

Lopez, Natalie, attorney who assisted stand-by counsel

Miller, Lisa H., Assistant United States Attorney

Moore, Robert F., Assistant United States Attorney

Nkorina, Serge (also known as Sergei Nkorina), Petitioner-Appellant

Ravindran, Arun Gopal, counsel for co-defendant

Reding Quiñones, Jason A., United States Attorney, Southern District of Florida

United States of America, Respondent-Appellee

[TO BE COMPLETED BEFORE FILING: name of each Magistrate Judge who acted in No. 1:19-cr-20261-CMA or No. 1:19-mj-02491]

[TO BE COMPLETED BEFORE FILING: appellate counsel in No. 22-10532]

[TO BE COMPLETED BEFORE FILING: identity of the victim named in the indictment (11th Cir. R. 26.1-2)]

No publicly traded company or corporation has an interest in the outcome of this appeal.

Petitioner-Appellant Serge Nkorina, proceeding pro se, applies under 28 U.S.C. § 2253(c), Federal Rule of Appellate Procedure 22(b), and Eleventh Circuit Rule 22-1(b) for a certificate of appealability ("COA"). The district court denied his motion under 28 U.S.C. § 2255 and denied a COA. ECF No. 10 at 9–10. It later denied his timely motion under Federal Rule of Civil Procedure 59(e) and again declined to issue a COA. ECF No. 18 at 6–7. ("ECF No." refers to the docket in No. 1:25-cv-25405-CMA, with page numbers from the CM/ECF header; "Crim. ECF No." refers to No. 1:19-cr-20261-CMA.) Appellant asks this Court to issue a COA on the two issues below.

ISSUES ON WHICH A CERTIFICATE IS REQUESTED

I. Whether the district court violated *Clisby v. Jones*, 960 F.2d 925 (11th Cir. 1992) (en banc), and *Rhode v. United States*, 583 F.3d 1289 (11th Cir. 2009), by failing to resolve Appellant's due-process claim that the Government suppressed favorable evidence under *Brady v. Maryland*, 373 U.S. 83 (1963), and *Giglio v. United States*, 405 U.S. 150 (1972), where his pro se § 2255 motion set out each element of that claim, identified the evidence at issue, and alleged a "*Brady* violation by the government (failure to disclose)."

II. Whether the district court abused its discretion in denying Rule 59(e) relief on the ground that Appellant's argument — that the court

overlooked a claim contained in his original motion — was one of the "new arguments that could have been raised" before judgment.

PRIOR RULINGS ON THIS REQUEST

As Eleventh Circuit Rule 27-1(a)(4) requires, Appellant states that the district court denied a COA in its order denying the § 2255 motion (ECF No. 10 at 9–10) and again in its order denying Rule 59(e) relief (ECF No. 18 at 6–7). No other court or judge has ruled on this request.

STATEMENT OF THE CASE

A. The criminal case

A jury convicted Appellant of conspiracy to commit kidnapping and kidnapping, and he was sentenced to 240 months in prison. ECF No. 10 at 1–3. This Court affirmed. *Id.* at 3 (citing *United States v. Nkorina*, No. 22-10532, 2025 WL 763378 (11th Cir. Mar. 11, 2025)). Before trial, the district court found Appellant's waiver of counsel knowing and voluntary, allowed him to represent himself, and appointed stand-by counsel. *Id.* at 2. When Appellant asked for "the immediate release of all discovery and videos . . . in the possession of the prosecution," the court denied the request, directed him to obtain discovery from stand-by counsel, and told him to communicate any request for missing discovery "to the Government directly." *Id.* at 2–3 (citing Crim. ECF Nos. 115, 116).

B. The § 2255 motion

Appellant filed a pro se § 2255 motion with an attached memorandum. ECF No. 1. On the form, his first ground stated that stand-by counsel refused to provide pretrial discovery and "failed to assist in obtaining *Brady* materials from the government." *Id.* at 4. Grounds two through four referred the court to the attached memorandum. *Id.* at 5, 7–8.

In the memorandum, Appellant set out the four elements of a *Brady* violation as this Court states them and addressed each one under its own heading. *Id.* at 21–23. Under "Element 1: Government Possession of Favorable Evidence," he listed the evidence he believed the Government held, including a co-defendant's police interview, a government forensic report, the alleged victim's statements, and cell-phone data. *Id.* at 21. Under "Element 3: Prosecution Suppression of Favorable Evidence," he wrote:

> The government's failure to provide *Brady* material, combined with standby counsel's refusal to advocate for its production, resulted in effective suppression even if not intentional.

Id. at 23. Under "Element 4," he alleged that "the withheld *Brady* material" created a reasonable probability of a different outcome. *Id.* at 23. Under the heading "Giglio Impeachment Evidence Was Also Withheld," he identified impeachment material concerning Government witnesses — a cooperation agreement, correspondence about promises of leniency, prior inconsistent statements, and a co-

defendant's criminal history — and alleged that the lack of these disclosures kept him from impeaching key witnesses "in violation of *Brady*/*Giglio*." *Id.* at 23–24. He then stated that, in his case, "two independent constitutional violations occur: (1) *Brady* violation by the government (failure to disclose); and (2) Ineffective assistance of counsel . . . ." *Id.* at 24.

Appellant acknowledges that much of the memorandum is written against stand-by counsel. The *Brady* discussion appears under a section heading that refers to stand-by counsel, *id.* at 21, 24; the memorandum says stand-by counsel's refusal to help "constructively suppresses" evidence "even if the government technically 'made it available,'" *id.* at 24; and the cumulative-error section ends by describing the errors as amounting to ineffective assistance, *id.* at 36. He does not hide those passages. His point is that the motion *also* alleged, in plain words, that the Government failed to disclose favorable evidence, and that this allegation is a separate constitutional claim.

C. The district court's rulings

The district court construed four grounds: three claims of ineffective assistance by stand-by counsel and a claim of cumulative error. ECF No. 10 at 3–4. In a footnote, it stated that Appellant "does not adequately raise any standalone *Brady* or *Giglio* claims outside the ineffective-assistance context," and it "decline[d] to construe additional claims not expressly raised." *Id.* at 4 n.8. It then held that a

defendant who represents himself cannot claim ineffective assistance by stand-by counsel, rejected the cumulative-error ground, and denied a COA. *Id.* at 6–10. The court did not decide whether the Government suppressed favorable evidence.

Appellant moved under Rule 59(e), arguing that the court had overlooked the Government-disclosure claim in his original motion. ECF No. 12. The court denied the motion. ECF No. 18. Relying on *Barritt v. Secretary, Florida Department of Corrections*, 968 F.3d 1246 (11th Cir. 2020), it reasoned that "[a] district court need not infer an independent claim from allegations offered in support of another," and it described Appellant's *Brady* allegations as "passing references" within arguments framed against stand-by counsel. ECF No. 18 at 3–4. It also held that Appellant "may not rely on the present Motion to introduce new arguments that could have been raised before the Court entered the Final Judgment." *Id.* at 5. It denied a COA, citing *Hamilton v. Secretary, Florida Department of Corrections*, 793 F.3d 1261, 1266 (11th Cir. 2015). ECF No. 18 at 7.

Appellant does not seek a COA on the district court's holding that he cannot bring an ineffective-assistance claim against stand-by counsel. He asks only that this Court allow him to appeal the court's failure to decide his separate claim against the Government.

THE STANDARD FOR A CERTIFICATE OF APPEALABILITY

A COA may issue if the applicant "has made a substantial showing of the denial of a constitutional right." 28 U.S.C. § 2253(c)(2). When the district court did not reach the underlying constitutional claim, a COA should issue if the applicant shows "that jurists of reason would find it debatable whether the petition states a valid claim of the denial of a constitutional right and that jurists of reason would find it debatable whether the district court was correct in its procedural ruling." *Slack v. McDaniel*, 529 U.S. 473, 484 (2000).

This is a threshold question, not a ruling on the merits. A court of appeals "should not decline the application for a COA merely because it believes the applicant will not demonstrate an entitlement to relief." *Miller-El v. Cockrell*, 537 U.S. 322, 337 (2003). Indeed, "a claim can be debatable even though every jurist of reason might agree, after the COA has been granted and the case has received full consideration, that petitioner will not prevail." *Id.* at 338.

ARGUMENT

I. Jurists of Reason Could Debate Whether the District Court Violated *Clisby* by Leaving Appellant's *Brady* Claim Against the Government Undecided.

A. The district court had to resolve every allegation of a constitutional violation.

In *Clisby*, this Court, sitting en banc, instructed district courts to resolve all claims for relief raised in a habeas petition, whether relief is granted or denied. 960

F.2d at 936. "A claim for relief for purposes of this instruction is any allegation of a constitutional violation." *Id.* And "an allegation of one constitutional violation and an allegation of another constitutional violation constitute two distinct claims for relief, even if both allegations arise from the same alleged set of operative facts." *Id.* When a district court fails to resolve a claim, this Court vacates the judgment without prejudice and remands. *Id.* at 938. The rule applies to motions under § 2255. *Rhode*, 583 F.3d at 1291.

A pro se filing must be read generously: "a pro se complaint, however inartfully pleaded, must be held to less stringent standards than formal pleadings drafted by lawyers." *Erickson v. Pardus*, 551 U.S. 89, 94 (2007) (citation and internal quotation marks omitted). At the same time, "[a] habeas petitioner must present a claim in clear and simple language such that the district court may not misunderstand it." *Dupree v. Warden*, 715 F.3d 1295, 1299 (11th Cir. 2013). These two rules work together. In *Dupree*, the claim the district court missed "consist[ed] of two sentences found in the middle of a fifteen-page memorandum attached to Dupree's petition," and this Court still held that the failure to resolve it violated *Clisby*. *Id.* In *Rhode*, the Court found a claim in statements spread across the motion and its memorandum, holding that "[t]hese statements, liberally construed, adequately state a claim of ineffective assistance of counsel." 583 F.3d at 1292. This

Court granted a COA on the *Clisby* question in both cases. *Id.* at 1289–90; *Dupree*, 715 F.3d at 1298.

B. Appellant's motion alleged a *Brady* violation by the Government in clear terms.

Reasonable jurists could conclude that Appellant's motion did far more than mention *Brady* in passing. He listed the elements of a *Brady* claim and addressed each one. ECF No. 1 at 21–23. He identified the evidence he believed the Government possessed. *Id.* at 21, 24. He alleged that the Government failed to provide it: "The government's failure to provide *Brady* material . . . resulted in effective suppression even if not intentional." *Id.* at 23. He alleged materiality. *Id.* And he expressly told the court that the facts gave rise to "two independent constitutional violations," the first being a "*Brady* violation by the government (failure to disclose)." *Id.* at 24.

Those allegations name a different wrongdoer (the prosecution), a different constitutional source (due process), and a different legal test (suppression of favorable, material evidence) than the Sixth Amendment claim against stand-by counsel. Under *Clisby*, that makes them a distinct claim, even though both claims grow out of the same discovery dispute. 960 F.2d at 936. The district court treated the overlap in facts as a reason to fold the *Brady* allegations into the ineffective-assistance grounds. ECF No. 18 at 3–4. *Clisby* says the opposite.

C. *Barritt* does not put the question beyond debate.

The district court relied on *Barritt*. There, this Court held that "simply because Barritt made passing references to 'coercion' does not mean he asserted an independent coercion claim for the purposes of *Clisby*." 968 F.3d at 1251–52. Barritt had alluded to "pressure" and "coercion" while arguing that counsel was ineffective; he never alleged a freestanding coercion claim. *Id.* Appellant's motion is different in kind. It did not merely use the word *Brady*. It set out the *Brady* elements, applied each one, accused the Government of a failure to disclose, and labeled that failure a separate constitutional violation. Whether that crosses the line between *Barritt*'s "passing references" and the claims recognized in *Rhode* and *Dupree* is, at a minimum, debatable.

Appellant recognizes the passages that cut the other way, including the heading of the subsection in which the "two independent constitutional violations" sentence appears and the closing sentence of the cumulative-error section. ECF No. 1 at 24, 36. But a pro se litigant's choice of headings does not control what his allegations say, and the question under *Clisby* is whether the motion contains an "allegation of a constitutional violation," 960 F.2d at 936 — not whether the litigant organized his brief as a lawyer would. A jurist could reasonably weigh these passages differently than the district court did. That is enough for a COA. *Miller-El*, 537 U.S. at 338.

D. The motion states a valid claim of the denial of a constitutional right.

The first part of the *Slack* test is also met. "[T]he suppression by the prosecution of evidence favorable to an accused upon request violates due process where the evidence is material either to guilt or to punishment, irrespective of the good faith or bad faith of the prosecution." *Brady*, 373 U.S. at 87. Appellant alleged that he repeatedly requested *Brady* and *Giglio* material, ECF No. 1 at 4; that the Government held favorable evidence, including impeachment evidence such as a cooperation agreement and promises of leniency to Government witnesses, *id.* at 21, 24; that it was not provided, *id.* at 23; and that its absence prevented him from impeaching key witnesses and created a reasonable probability of a different result, *id.* at 23–24. Allegations that the prosecution withheld cooperation agreements and leniency promises given to its witnesses state a classic *Giglio* claim.

The Government has argued that any such claim is procedurally defaulted and fails on the merits. ECF No. 14 at 3. The district court did not decide either question. Those are matters for the district court on remand, not reasons to deny a COA, because the COA inquiry "does not require a showing that the appeal will succeed." *Miller-El*, 537 U.S. at 337.

II. Jurists of Reason Could Debate Whether the Rule 59(e) Ruling Was Correct.

The district court denied Rule 59(e) relief in part because Appellant's motion raised "new arguments that could have been raised before the Court entered the Final

Judgment." ECF No. 18 at 5. But Appellant's Rule 59(e) motion did not add a claim. It argued that the court had overlooked a claim already in his original motion, and it pointed to the pages where that claim appears. Rule 59(e) exists to correct manifest errors of law or fact, ECF No. 18 at 2, and a failure to resolve a pleaded claim, if it occurred, is that kind of error.

Hamilton is not to the contrary. There, the Rule 59(e) motion sought to "raise for the first time an attorney-abandonment claim," and this Court held that "[t]he denial of that Rule 59(e) motion is not debatable among reasonable jurists." 793 F.3d at 1266. Appellant's *Brady* claim was not raised for the first time after judgment; whether it was raised before judgment is the very question presented in Issue I. If that question is debatable, so is the court's refusal to correct the omission under Rule 59(e).

Issue II is offered in addition to Issue I, not in place of it. Because Appellant's Rule 59(e) motion was timely — the district court's order describes it as filed on June 21, 2026, within 28 days after the May 27 judgment, ECF No. 18 at 1 — the May 27 order itself is before this Court, and Issue I can be decided without regard to the Rule 59(e) standard.

CONCLUSION

Appellant respectfully asks this Court to issue a certificate of appealability on Issues I and II, or at a minimum on Issue I: whether the district court violated *Clisby*

v. Jones by failing to resolve his claim that the Government suppressed favorable evidence in violation of *Brady* and *Giglio*.

Respectfully submitted this ____ day of _____, 2026.

_____

SERGE NKORINA
Petitioner-Appellant, Pro Se
Reg. No. 26432-509
Federal Correctional Institution — Miami
Inmate Mail/Parcels
P.O. Box 779800
Miami, FL 33177

CERTIFICATE OF COMPLIANCE

This application complies with the length limits of Federal Rule of Appellate Procedure 27(d)(2)(A) and Eleventh Circuit Rule 22-2 because, excluding the parts of the document exempted by Rule 32(f), it contains 2,599 words. It complies with the typeface and type-style requirements of Rules 27(d)(1)(E), 32(a)(5), and 32(a)(6) because it was prepared in a 14-point proportionally spaced serif typeface.

_____

SERGE NKORINA

CERTIFICATE OF SERVICE AND DECLARATION OF INMATE FILING

I certify that on the date below I placed this Application for a Certificate of Appealability, with its appendix, in the legal mail system at the Federal Correctional Institution — Miami, with first-class postage prepaid, addressed to the Clerk of Court, United States Court of Appeals for the Eleventh Circuit, 56 Forsyth Street, N.W., Atlanta, Georgia 30303, and that I mailed a copy, first-class postage prepaid, to counsel for the United States:

George E. Doty III, Assistant United States Attorney,
or other counsel of record for the United States
United States Attorney's Office, Southern District of Florida
99 N.E. 4th Street
Miami, FL 33132

I declare under penalty of perjury under 28 U.S.C. § 1746 that the foregoing is true and correct, and that I deposited this document in the institution's internal mail system on _____, 2026, with first-class postage prepaid.

Executed on this ____ day of _____, 2026.

_____
SERGE NKORINA
Petitioner-Appellant, Pro Se
Reg. No. 26432-509

APPENDIX

Serge Nkorina v. United States, No. 26-14135-D

Tab 1 — Order Denying § 2255 Motion and COA, ECF No. 10 (May 27, 2026)

Tab 2 — Order Denying Rule 59(e) Motion, ECF No. 18 (Aug. 21, 2026)

Tab 3 — Excerpts of § 2255 Motion, ECF No. 1 at 4–5, 7–8, 21–24, 36

Tab 4 — Government’s Response to Rule 59(e) Motion, ECF No. 14

TAB 1

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 25-25405-CIV-ALTONAGA

SERGE NKORINA,

Movant,

v.

UNITED STATES OF AMERICA,

Respondent.
_____/

ORDER

THIS CAUSE comes before the Court on *pro se* Movant, Serge Nkorina's Motion Under 28 U.S.C. Section 2255 to Vacate, Set Aside, or Correct Sentence by a Person in Federal Custody [ECF No. 1]. Movant challenges the lawfulness of his conviction and sentence in case number 19-cr-20261. (*See generally* Mot.). Respondent filed a Response [ECF No. 5], arguing the Court should deny Movant's claims as procedurally defaulted and meritless (*see generally* Resp.), along with a Transcript [ECF No. 5-1] and an Affidavit [ECF No. 5-2]. Movant filed a Reply [ECF No. 9]. The Court has carefully considered the parties' written submissions, the record, and applicable law. For the following reasons, the Motion is denied.

I. BACKGROUND

Movant's Criminal Case. On May 2, 2019, a grand jury indicted Movant for conspiracy to commit kidnapping, in violation of 18 U.S.C. section 1201(c) ("Count 1"); kidnapping, in violation of 18 U.S.C. section 1201(a)(1) ("Count 2"); and brandishing a firearm in furtherance of a crime of violence, in violation of 18 U.S.C. section 924(c)(1)(A)(ii) ("Count 3"). *See generally*

United States v. Nkorina, No. 19-cr-20261, Indictment [ECF No. 9] (filed on May 2, 2019).[1, 2] On January 26, 2021, a magistrate judge appointed Omar F. Guerra Johansson as Movant's counsel. *See* Minute Order [CR ECF No. 48] 1 (entered on Jan. 26, 2021).[3]

Movant later filed a letter *pro se* seeking his lawyer's "withdraw[al]" and "immediate replacement on the ground of misconduct." Sept. 28, 2021 Letter [CR ECF No. 102] 1 (alteration added). The Court denied Movant's request and scheduled a *Faretta*[4] hearing for October 5, 2021. *See generally* Oct. 1, 2021 Order [CR ECF No. 107]; *see also* Paperless Notice Setting Hr'g [CR ECF No. 106] (entered on Oct. 1, 2021). At the *Faretta* hearing, because Movant asked "to proceed *pro se*[,]" the Court "conducted a thorough *Faretta* inquiry and allow[ed] [Movant] to proceed *pro se* with stand-by counsel." Paperless Min. Entry [CR ECF No. 109] (alterations added) (entered on Oct. 5, 2021). The Court found Movant's "request to represent himself [was] knowing and voluntary" and appointed Johansson as stand-by counsel "to provide [Movant] with assistance as requested[.]" Oct. 5, 2021 Order [CR ECF No. 111] 1 (alterations added).

Among his various *pro se* pretrial motions, Movant submitted another letter seeking "the immediate release of all discovery and videos . . . in the possession of the prosecution[.]" Oct. 26, 2021 Letter [CR ECF No. 115] 1 (alterations added). The Court denied the request and "instructed [Movant] to seek copies of the discovery from his stand-by counsel, Omar F. Guerra Johansson." Oct. 26, 2021 Order [CR ECF No. 116] 1 (alteration added). The Court further stated that,

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[1] References to docket entries in Movant's criminal case, Case No. 19-20261-cr-ALTONAGA, are hereinafter denoted with "CR ECF No."

[2] The Court later dismissed Count 3 on motion of the Government. *See* Second Am. J. [CR ECF No. 260] 1.

[3] The Court uses the pagination generated by the electronic CM/ECF database, which appears in the headers of all court filings.

[4] *Faretta v. California*, 422 U.S. 806 (1975).

"[s]hould Mr. Johansson be missing any discovery [Movant] believes exists," Movant "should communicate his request to the Government directly." *Id.* (alterations added).

Movant's jury trial began on November 29, 2021. *See* Paperless Min. Entry [CR ECF No. 136] (entered on Nov. 29, 2021). Movant proceeded *pro se* throughout the six-day trial, with Johansson serving as stand-by counsel.[5] On December 7, 2021, a jury found Movant guilty of Counts 1 and 2. *See generally* Verdict [CR ECF No. 151] (entered Dec. 7, 2021). Movant was convicted and sentenced to 240 months' imprisonment on both counts, followed by a five-year term of supervised release. *See* Second Am. J. [CR ECF No. 260] 1–3 (entered July 29, 2022).

Movant appealed. *See generally* Notice of Appeal [CR ECF No. 184] (entered Feb. 18, 2022). On March 11, 2025, the Eleventh Circuit Court of Appeals affirmed Movant's convictions and 240-month sentence. *See generally United States v. Nkorina*, No. 22-10532, 2025 WL 763378, at *1 (11th Cir. Mar. 11, 2025).

Section 2255 Motion to Vacate. Movant purports to assert one ground for habeas relief. (*See* Mot. 4). But mindful of Movant's *pro se* status, the Court liberally construes four grounds from the application: that (1) Movant's stand-by counsel was constitutionally ineffective for refusing "to provide discovery materials" ("Ground 1") (*id.* 19); (2) his stand-by counsel was constitutionally ineffective by failing to assist Movant "in obtaining *Brady*[6] material" and "*Giglio*[7]

[5] *See, e.g.*, Trial Tr. Nov. 29, 2021 [CR ECF No. 235] 11 (entered May 25, 2022) (Movant introducing himself to potential jurors as proceeding *pro se*); Trial Tr. Nov. 30, 2021 [CR ECF No. 236] 36 (entered May 25, 2022) (Movant cross-examining an expert witness); Trial Tr. Dec. 1, 2021 [CR ECF No. 237] 16 (entered May 25, 2022) (Movant cross-examining a witness); Trial Tr. Dec. 2, 2021 [CR ECF No. 238] 5–6 (entered May 25, 2022) (Movant cross-examining a government witness); Trial Tr. Dec. 3, 2021 [CR ECF No. 239] 51 (entered May 25, 2022) (Johansson recognizing Movant's *pro se* status on the record); Trial Tr. Dec. 7, 2021 [CR ECF No. 230] 1 (entered May 25, 2022) (noting Movant as "appearing *pro se*").

[6] *Brady v. Maryland*, 373 U.S. 83 (1963).

[7] *Giglio v. United States*, 405 U.S. 150 (1972).

material" from the Government ("Ground 2") (*id.* 21, 24); (3) his stand-by counsel was constitutionally ineffective by "operat[ing] under an actual conflict of interest," causing him to "constructively amend[] the charges" in the Indictment ("Ground 3") (*id.* 29 (alterations added)); and (4) "cumulative errors" deprived Movant of a fair trial ("Ground 4") (*id.* 36).[8]

II. LEGAL STANDARDS

Section 2255. Under 28 U.S.C. section 2255, a prisoner who claims his sentence was imposed in violation of the Constitution may move the court that imposed the sentence to "vacate, set aside or correct the sentence." *Id.* § 2255(a). Because collateral review is not a substitute for direct appeal, the grounds for collateral attack on final judgments under section 2255 are extremely limited. *See United States v. Frady*, 456 U.S. 152, 165 (1982) (citations omitted). A prisoner is entitled to relief under section 2255 if the court imposed a sentence that (1) violated the Constitution or laws of the United States; (2) exceeded its jurisdiction; (3) exceeded the maximum authorized by law; or (4) is otherwise subject to collateral attack. 28 U.S.C. § 2255(a); *see McKay v. United States*, 657 F.3d 1190, 1194 n.8 (11th Cir. 2011) (citation omitted).

Ineffective Assistance of Counsel. The Sixth Amendment to the United States Constitution guarantees criminal defendants the right to assistance of counsel during criminal proceedings. *See Strickland v. Washington*, 466 U.S. 668, 684–85 (1984). When assessing counsel's performance, the Court employs a strong presumption that counsel "rendered adequate

[8] *See Smith v. United States*, 420 F. App'x 944, 945 (11th Cir. 2011) (recognizing that courts "construe *pro se* filings liberally to afford review on any 'legally justifiable base'" (quoting *Sanders v. United States*, 113 F.3d 184, 187 (11th Cir. 1997))). Movant does not adequately raise any standalone *Brady* or *Giglio* claims outside the ineffective-assistance context, nor any independent claim of court error. To the contrary, Movant plainly seeks relief solely on ineffective-assistance grounds against stand-by counsel. (*See generally* Mot.). The Court therefore declines to construe additional claims not expressly raised. *See* R. Governing § 2255 Proceedings 2(b) (requiring a movant to specify all grounds for relief available to him); *cf. Richardson v. Route 1, Inc.*, No. 12-cv-2888, 2013 WL 4055857, at *4 (M.D. Fla. Aug. 12, 2013) (recognizing the court "is not duty-bound to scrutinize [a *pro se* litigant's] factual allegations and hypothesize as to what potential cause of action [those] facts might support" (alterations added)).

assistance and made all significant decisions in the exercise of reasonable professional judgment." *Id.* at 690. To prevail on a claim of ineffective assistance of counsel, a movant must demonstrate both that (1) "counsel's performance was deficient"; and (2) "the deficient performance prejudiced the defense." *Id.* at 687.

To establish deficient performance, a movant must show "counsel's conduct fell 'outside the wide range of professionally competent assistance.'" *Cummings v. Sec'y for Dep't of Corr.*, 588 F.3d 1331, 1356 (11th Cir. 2009) (quoting *Strickland*, 466 U.S. at 690); *see also Harrington v. Richter*, 562 U.S. 86, 104 (2011) ("To establish deficient performance, a person challenging a conviction must show that counsel's representation fell below an objective standard of reasonableness." (citation and quotation marks omitted)). "[S]trategic choices made after thorough investigation of law and facts relevant to plausible options are virtually unchallengeable[.]" *Strickland*, 466 U.S. at 690 (alterations added). The Court's review of counsel's performance should focus "not [on] what is possible or 'what is prudent or appropriate, but only [on] what is constitutionally compelled.'" *Chandler v. United States*, 218 F.3d 1305, 1313 (11th Cir. 2000) (en banc) (alterations added; footnote call number omitted; quoting *Burger v. Kemp*, 483 U.S. 776, 794 (1987)). Counsel is not ineffective for failing to raise non-meritorious issues, *see Chandler v. Moore*, 240 F.3d 907, 917 (11th Cir. 2001), nor is counsel required to present every non-frivolous argument, *see Dell v. United States*, 710 F.3d 1267, 1282 (11th Cir. 2013).

To establish prejudice, a movant must show "a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different." *Strickland*, 466 U.S. at 694. "A reasonable probability is a probability sufficient to undermine confidence in the outcome." *Id.*

III. DISCUSSION

Respondent argues Movant's ineffective-assistance claims against stand-by counsel are procedurally defaulted and, alternatively, fail on the merits. (*See* Resp. 8–12). The Court agrees with Respondent that the Motion is without merit. *See Dallas v. Warden*, 964 F.3d 1285, 1307 (11th Cir. 2020) ("[A] federal court may skip over the procedural default analysis if a claim would fail on the merits in any event." (alteration added; citing *Loggins v. Thomas*, 654 F.3d 1204, 1215 (11th Cir. 2011))). The Court explains.

A. Grounds 1–3

To begin, Movant's first three grounds fail because he cannot assert ineffective-assistance claims against stand-by counsel. As Respondent notes, "a defendant who elects to represent himself cannot thereafter complain that the quality of his own defense amounted to a denial of effective assistance of counsel." *Faretta*, 422 U.S. at 835 n.46 (quotation marks omitted); (*see* Resp. 10–12). Although a district court may appoint stand-by counsel, a defendant has no constitutional right to such "hybrid" representation because he remains responsible for his own defense. *McKaskle v. Wiggins*, 465 U.S. 168, 183 (1984); *see also United States v. Taylor*, 933 F.2d 307, 312–13 (5th Cir. 1991) (acknowledging that "the key limitation on standby counsel is that such counsel *not be responsible* — and not be perceived to be responsible — for the accused's defense[,]" and that standby counsel is generally not considered "counsel" within the meaning of the Sixth Amendment (alteration added; emphasis in original)).

Thus, "the inadequacy of standby counsel's performance, without the defendant's relinquishment of his *Faretta* right, cannot give rise to an ineffective assistance of counsel claim under the Sixth Amendment." *Simpson v. Battaglia*, 458 F.3d 585, 597 (7th Cir. 2006) (citing *Wainwright v. Torna*, 455 U.S. 586, 587–88 (1982); *Coleman v. Thompson*, 501 U.S. 722, 752

(1991)); *accord United States v. Roggio*, 863 F.2d 41, 43 (11th Cir. 1989); *United States v. Foster*, No. 98-2337, 2000 WL 1511762, at *1 (8th Cir. Oct. 12, 2000); *see also United States v. Morrison*, 153 F.3d 34, 55 (2d Cir. 1998) (recognizing "without a constitutional right to standby counsel, a defendant is not entitled to relief for the ineffectiveness of standby counsel" (citation omitted)); *United States v. Oliver*, 630 F.3d 397, 414 (5th Cir. 2011) (finding that "[b]ecause Oliver had no constitutional right to standby counsel and because Oliver acted as his own counsel while he was proceeding *pro se*, he [could not] prevail on a claim that standby counsel was ineffective" (alterations added; citing *Morrison*, 153 F.3d at 55)).

Here, Movant's three ineffective-assistance claims concern discovery issues arising while Johansson served as stand-by counsel. (*See* Mot. 19–29). In Ground 1, Movant claims Johansson refused to provide discovery. (*See id.* 19). In Ground 2, he claims Johansson failed to help him obtain *Brady* and *Giglio* material from the Government. (*See id.* 21–24). And in Ground 3, he claims Johansson had a conflict of interest. (*See id.* 29).

Again, Movant cannot "raise an ineffective assistance of counsel claim challenging standby counsel's performance." *United States v. Brown*, No. 18-cr-89, 2020 WL 3240815, at *6 n.11 (M.D. Fla. June 9, 2020). In his criminal case, Movant asked to proceed *pro se*. *See* Paperless Min. Entry [CR ECF No. 109]. After a *Faretta* inquiry, the Court granted Movant's request and found his waiver of counsel was knowing and voluntary. *See id.*; *see also* Oct. 5, 2021 Order [CR ECF No. 111] 1. And Movant continued to exercise that right throughout trial, with Johansson serving only as stand-by counsel.

Movant nonetheless asserts he "had no means to compel the [G]overnment to disclose *Brady* material without standby counsel's assistance." (Mot. 22 (alteration added)). This argument is not well taken. While proceeding *pro se*, Movant was guided by the Court on how to obtain

discovery. The Court specifically instructed Movant to contact the Government directly for any discovery Johansson did not possess. *See* Oct. 26, 2021 Order [CR ECF No. 116] 1. True, obtaining discovery without full representation may have been less convenient. But "[w]hen an accused manages his own defense, he relinquishes, as a purely factual matter, many of the traditional benefits associated with the right to counsel." *Faretta*, 422 U.S. at 835 (alteration added). In any event, the Supreme Court has not recognized a "right to the assistance of standby counsel to receive discovery that a pro se defendant is unable to receive personally due to his confinement." *Denton v. United States*, No. 11-cr-54, 2019 WL 1953316, at *15 (N.D. Ala. May 2, 2019).

By choosing to proceed *pro se*, Movant waived any ineffective-assistance claim against stand-by counsel. *See, e.g.*, *Roggio*, 863 F.2d at 43 (finding defendant could not "now complain that he received ineffective assistance of counsel at trial" where he "insisted on representing himself during his trial" and "exercise[ed] that right" (alteration added)); *Stapleton v. United States*, No. 14-80151-cr, 2023 WL 12026833, at *9 (S.D. Fla. Dec. 18, 2023) (concluding the movant was "not entitled to relief on his claims of ineffective assistance of standby counsel at trial as [the m]ovant proceeded *pro se*" (alteration added)); *Porter v. Sec'y, Dep't of Corr.*, No. 23-cv-441, 2026 WL 879092, at *13 (M.D. Fla. Mar. 31, 2026) ("Porter cannot show a deprivation of his Sixth Amendment right to effective assistance of counsel while Boldt was merely serving as standby counsel."). Grounds 1–3 therefore fail.

B. Ground 4

In his final ground, Movant claims that "cumulative errors" deprived him of a fair trial. (Mot. 36). This claim fails because none of Movant's underlying claims has merit, leaving nothing to accumulate. *See, e.g.*, *Morris v. Sec'y, Dep't of Corr.*, 677 F.3d 1117, 1132 (11th Cir. 2012)

("[N]one of Morris's individual claims of error or prejudice have any merit, and therefore we have nothing to accumulate." (alteration added)); *Lalonde v. United States*, No. 09-60181-Cr, 2012 WL 4466529, at *30 (S.D. Fla. May 18, 2012) (same); citing *Morris*, 677 F.3d at 1132)), *report and recommendation adopted*, 2012 WL 4466528 (S.D. Fla. Sept. 27, 2012). Ground 4 thus also fails.

C. Evidentiary Hearing

In a habeas corpus proceeding, it is the movant's burden "to establish the need for an evidentiary hearing." *Chavez v. Sec'y, Fla. Dep't of Corr.*, 647 F.3d 1057, 1060 (11th Cir. 2011) (citations and quotation marks omitted). "[I]f the record refutes the applicant's factual allegations or otherwise precludes habeas relief, a district court is not required to hold an evidentiary hearing." *Schriro v. Landrigan*, 550 U.S. 465, 474 (2007) (alteration added; citation omitted). Here, the issues presented can be resolved based on the record. Because Movant's claims can be addressed "without further factual development[,]" he is not entitled to an evidentiary hearing. *Turner v. Crosby*, 339 F.3d 1247, 1275 (11th Cir. 2003) (alteration added).

D. Certificate of Appealability

"A certificate of appealability may issue . . . only if the applicant has made a substantial showing of the denial of a constitutional right." 28 U.S.C. § 2253(c)(2) (alteration added). The Supreme Court has described the limited circumstances when a certificate of appealability should properly issue after the district court denies a habeas petition:

> Where a district court has rejected the constitutional claims on the merits, the showing required to satisfy [section] 2253(c) is straightforward: The [Movant] must demonstrate that reasonable jurists would find the district court's assessment of the constitutional claims debatable or wrong.

Slack v. McDaniel, 529 U.S. 473, 484 (2000) (alterations added). Since reasonable jurists would not find the Court's assessment of Movant's claims debatable, Movant does not satisfy this burden. Thus, the Court will not issue a certificate of appealability.

IV. CONCLUSION

Accordingly, it is

ORDERED AND ADJUDGED that *pro se* Movant, Serge Nkorina's Motion Under 28 U.S.C. [Section] 2255 to Vacate, Set Aside, or Correct Sentence by a Person in Federal Custody **[ECF No. 1]** is **DENIED**. No certificate of appealability shall issue. The Clerk of Court is directed to **CLOSE** this case.

DONE AND ORDERED in Miami, Florida, this 27th day of May, 2026.

CECILIA M. ALTONAGA
CHIEF UNITED STATES DISTRICT JUDGE

cc: Movant, *pro se*
counsel of record

TAB 2

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 25-25405-CIV-ALTONAGA

SERGE NKORINA,

Movant,

v.

UNITED STATES OF AMERICA,

Respondent.
_____/

ORDER

THIS CAUSE came before the Court on *pro se* Movant, Serge Nkorina's Motion to Alter or Amend the Judgment . . . [ECF No. 12], filed on June 21, 2026. [1] Movant asks that the Court alter or amend the May 27, 2026 Order [ECF No. 10] denying his Motion Under 28 U.S.C. [Section] 2255 to Vacate, Set Aside, or Correct Sentence . . . ("Mot. to Vacate") [ECF No. 1]. (*See* Mot. 11–12).[2] Respondent filed a Response [ECF No. 14], and Movant filed a Reply [ECF No. 17]. For the following reasons, the Motion is denied.

I. BACKGROUND

In the May 27, 2026 Order, the Court construed four claims from Movant's Motion to Vacate: that (1) Movant's stand-by counsel was constitutionally ineffective by refusing to provide him discovery materials; (2) stand-by counsel was constitutionally ineffective in failing to assist

[1] Movant filed a Notice of Appeal [ECF No. 15] on July 16, 2026. The appeal does moot the pending Motion. *Stansell v. Revolutionary Armed Forces of Colom.*, 771 F.3d 713, 746 (11th Cir. 2014) ("The district court retained jurisdiction to consider the Rule 59 motion . . . because the notice of appeal became effective following the district court's denial of that motion." (alteration added)).

[2] The Court uses the pagination generated by the electronic CM/ECF database, which appears in the headers of all court filings.

Movant in obtaining evidence from the Government under *Brady v. Maryland*, 373 U.S. 83 (1963), and *Giglio v. United States*, 405 U.S. 150 (1972); (3) stand-by counsel was constitutionally ineffective because he operated under a conflict of interest; and (4) cumulative errors deprived Movant of a fair trial. (*See* May 27, 2026 Order 3–4). The Court denied the first three claims because Movant, having elected to represent himself, could not assert a Sixth Amendment ineffective-assistance-of-counsel-claim based on stand-by counsel's performance. (*See id.* 6–8). The Court rejected Movant's fourth claim because, given the lack of any meritorious Sixth Amendment claims, there were no errors to accumulate. (*See id.* 8–9). The Court declined to construe freestanding *Brady* or *Giglio* claims, or an independent claim of court error, because Movant did not raise such standalone claims. (*See id.* 4 n.8).

In the present Motion to Alter or Amend, Movant argues that the Court committed "five discrete legal errors" by: (1) refusing to construe freestanding due process claims under *Brady* and *Giglio*; (2) refusing to construe a freestanding fundamental-fairness claim; (3) relying on an "incorrect factual premise"; (4) failing to address all constitutional claims raised; and (5) erroneously dismissing Movant's cumulative error ground. (Mot. 2).

II. LEGAL STANDARD

"The only grounds for granting a [Federal] Rule [of Civil Procedure] 59 motion [to alter or amend] are newly-discovered evidence or manifest errors of law or fact." *Arthur v. King*, 500 F.3d 1335, 1343 (11th Cir. 2007) (alteration adopted; other alterations added; citation and quotation marks omitted). "A motion to alter or amend a judgment cannot be used to relitigate old matters, raise arguments, or present evidence that could have been raised prior to the entry of judgment." *Jones v. S. Pan Servs.*, 450 F. App'x 860, 863 (11th Cir. 2012) (citations omitted); *see also Williams v. SunTrust Banks, Inc.*, 280 F. App'x 885, 887 (11th Cir. 2008) (citation omitted).

"[T]he moving party must set forth facts or law of a strongly convincing nature to induce the court to reverse its prior decision." *Burger King Corp. v. Ashland Equities, Inc.*, 181 F. Supp. 2d 1366, 1369 (S.D. Fla. 2002) (alteration added; citation omitted). The decision to alter or amend a judgment is "committed to the sound discretion of the district court." *O'Neal v. Kennamer*, 958 F.2d 1044, 1047 (11th Cir. 1992).

III. DISCUSSION

Brady and Giglio Claims. Movant first argues that because he "pleaded [the] substance" of due process claims under *Brady* and *Giglio*, the Court was obligated to liberally construe his Motion to Vacate as asserting those claims. (Mot. 5 (alteration added)). But Movant sought "relief solely on ineffective-assistance grounds against stand-by counsel." (May 27, 2026 Order 4 n.8). In Movant's own words, "[t]he fundamental question presented [was] [w]hether standby counsel's refusal to comply with the [C]ourt's [Orders] . . . constitutes ineffective assistance of counsel under the *Sixth Amendment*." (Mot. to Vacate 15 (alterations and emphasis added)). Movant relied on no other constitutional provision and used *Brady* and *Giglio* to argue ineffective assistance in "[s]tandby counsel's refusal to provide pre-trial discovery." (*Id*. 21 (alteration added)).

A district court need not infer an independent claim from allegations offered in support of another. *See Barritt v. Sec'y, Fla. Dep't of Corr.*, 968 F.3d 1246, 1251 (11th Cir. 2020) (holding that a district court did not err by not separately construing a "'coercion' claim that [petitioner] believe[d] was wrapped within his ineffective assistance of counsel claims" (alterations added)). Movant now asserts that the Motion to Vacate "expressly alleged 'two independent constitutional violations[.]'" (Reply 2 (alteration added; citing Mot. to Vacate 24)). But Movant's citation highlights the glaring flaw in his present argument — he attempts to extract an independent *Brady* claim from a Sixth Amendment argument that he titled, "*Standby Counsel's Obstruction*

Compounded Brady Violations[.]" (Mot. to Vacate 24 (alteration added; emphasis added)). Each page of Movant's legal argument in his Motion to Vacate focused on ineffective assistance of counsel. (*See id.* 14–36).

Had Movant wished to bring due process claims, he was required to state grounds to substantiate those claims. *See* R. Governing § 2255 Proceedings 2(b) (requiring a movant to specify all grounds for relief available to him); *cf. Richardson v. Route 1, Inc.*, No. 12-cv-2888, 2013 WL 4055857, at *4 (M.D. Fla. Aug. 12, 2013) (recognizing courts are "not duty-bound to scrutinize [a pro se litigant's] factual allegations and hypothesize as to what potential cause of action [those] facts might support" (alterations added)). Although courts must liberally construe pro se pleadings, they "cannot act as de facto counsel or rewrite an otherwise deficient pleading to sustain an action." *Bilal v. Geo Care, LLC*, 981 F.3d 903, 911 (11th Cir. 2020) (citation omitted). "[D]istrict courts cannot concoct or resurrect arguments neither made nor advanced by the parties." *Reaves v. Sec'y, Fla. Dep't of Corr.*, 872 F.3d 1137, 1149 (11th Cir. 2017) (alteration added; citation and quotation marks omitted).

Movant submitted a Motion to Vacate that, on every page, directed the Court to a single constitutional theory: ineffective assistance of counsel under the Sixth Amendment. (*See generally* Mot. to Vacate). Movant's reliance on passing references to *Brady* and *Giglio* appeared within arguments that Movant himself expressly framed as challenges to standby counsel's conduct.

Movant knew of the *Brady* and *Giglio* line of cases. (*See, e.g.*, Mot. to Vacate 22 ("[Movant] had no means to compel the [G]overnment to disclose *Brady* material without standby counsel's assistance." (alterations added))). His familiarity with those cases, coupled with his failure to assert any related due-process claim, supports the conclusion that he chose not to pursue such a claim. *See Chapman v. Warden, FCC Coleman - USP II*, No. 20-10427, 2021 WL 5863402,

at *3 (11th Cir. Dec. 10, 2021) ("Chapman personally raised many [*United States v. Grostefon*, 12 M.J. 431 (C.M.A. 1982)] issues . . . which shows that Chapman knew how to raise additional claims had he wanted to do so." (alterations added)).

Movant's Reply only reinforces that inference: he points to *Brady* and *Giglio* arguments he raised in his underlying criminal proceedings, demonstrating that he knew how to invoke those doctrines when he wished to. (*See* Mot. 3). But as mentioned, Movant may not rely on the present Motion to introduce new arguments that could have been raised before the Court entered the Final Judgment [ECF No. 11]. *See, e.g.*, *Jones*, 450 F. App'x at 863; *Williams*, 280 F. App'x at 887.

Fundamental-Fairness Claim. Movant next argues that because he raised the "substance" of a fundamental-fairness claim under the due process clause, the Court erred by improperly construing the claim. (Mot. 7). He contends that the "cumulative denial" of his requests for evidence "deprived him of the ability to prepare . . . a defense[.]" (*Id.* (alterations added)) But a fundamental-fairness claim requires more than a vague allegation about an unfair trial. *See Dowling v. United States*, 493 U.S. 342, 352 (1990) ("[T]he Due Process Clause has limited operation. We, therefore, have defined the category of infractions that violate 'fundamental fairness' very narrowly." (alteration added)). To the extent that Movant referenced the fairness of his proceedings, those references were tied to standby counsel's performance. (*See, e.g.*, Mot. to Vacate 34 ("Pro Se defendant was denied [participation in the adversarial process] when stand-by counsel . . . cumulatively undermined the fairness of the proceedings." (alterations added))). Movant otherwise failed to raise any grounds to support a fundamental fairness claim. (*See generally id.*); *see also* R. Governing § 2255 Proceedings 2(b) (requiring a movant to specify all grounds for relief available to him).

Incorrect Factual Premise. The Court also disagrees with Movant's contention that the May 27, 2026 Order erroneously concluded he failed to assert an independent claim of judicial error. (*See* Mot. 9). Movant supports this present contention by citing arguments raised in his underlying criminal proceedings rather than claims presented in his Motion to Vacate. (*See id.*). The Motion to Vacate identifies no judicial misconduct or other error attributable to the court. (*See generally* Mot. to Vacate). Movant asserted that standby counsel "failed to provide court-ordered discovery[,]" a contention directed at standby counsel's conduct, not the court's. (*Id.* 7 (alteration added)). Movant may not use his Motion to recast prior allegations and present arguments that could have been raised before the entry of Judgment. *See Jones*, 450 F. App'x at 863.

Constitutional Claims and Cumulative Error. Movant's final two arguments rise — and fall — together. He contends that the Court failed to address all constitutional claims because it declined to construe independent *Brady, Giglio*, and fundamental-fairness claims. (*See* Mot. 9–10). As explained, Movant asserted only a Sixth Amendment ineffective-assistance-of-counsel-claim. (*See generally* Mot. to Vacate). Because the Court did not overlook any properly presented constitutional claim, there was no error.

Certificate of Appealability. Movant alternatively asks the Court to issue a certificate of appealability on whether it "erred by declining to construe Movant's pro se [section] 2255 motion . . . as raising freestanding" claims. (Mot. 11 (alterations added)). The Court declines to do so.

"A certificate of appealability may issue . . . only if the applicant has made a substantial showing of the denial of a constitutional right." 28 U.S.C. § 2253(c)(2) (alteration added). The Supreme Court has described the limited circumstances when a certificate of appealability should properly issue after a district court denies a habeas petition:

> Where a district court has rejected the constitutional claims on the merits, the showing required to satisfy [section] 2253(c) is straightforward: The [Movant]

> must demonstrate that reasonable jurists would find the district court's assessment of the constitutional claims debatable or wrong.

Slack v. McDaniel, 529 U.S. 473, 484 (2000) (alterations added). Reasonable jurists would not debate the Court's conclusion that Movant failed to raise the present claims in his Motion to Vacate. Nor would reasonable jurists debate the Court's refusal to permit Movant to raise those claims for the first time after Judgment has been entered. *See Hamilton v. Sec'y, Fla. Dep't of Corr.*, 793 F.3d 1261, 1266 (11th Cir. 2015) ("The denial of [a] Rule 59(e) motion [raising a claim for the first time] is not debatable among reasonable jurists." (alterations added)).

IV. CONCLUSION

Accordingly, it is

ORDERED AND ADJUDGED that Movant, Serge Nkorina's Motion to Alter or Amend the Judgment . . . **[ECF No. 12]** is **DENIED**.

DONE AND ORDERED in Miami, Florida, this 21st day of August, 2026.

CECILIA M. ALTONAGA
CHIEF UNITED STATES DISTRICT JUDGE

cc: counsel of record
Movant, *pro se*

TAB 3

(d) If you did not appeal from the action on any motion, petition, or application, explain briefly why you did not:

12. For this motion, state every ground on which you claim that you are being held in violation of the Constitution, laws, or treaties of the United States. Attach additional pages if you have more than four grounds. State the facts supporting each ground.

GROUND ONE: Standby counsel's refusal to provide pre-trial discovery, failed to assist in obtaining Brady materials from the government; constructive denial.

(a) Supporting facts (Do not argue or cite law. Just state the specific facts that support your claim.):

Petitioner/Defendant requested, ad naseum, the production of discovery items protected under Brady and Giglio, yet standby counsel refused to assist in its production once Pro Se status was granted; effectively obstructing all effective trial preparations.

See attached Petition/Memorandum/Motion

(b) **Direct Appeal of Ground One:**

(1) If you appealed from the judgment of conviction, did you raise this issue?

Yes ☐ No ☒

(2) If you did not raise this issue in your direct appeal, explain why: Appellate counsel refused to address the issue in that forum; avoiding effective communications with Petitioner/Defendant prior to submission on his behalf (documented).

(c) **Post-Conviction Proceedings:**

(1) Did you raise this issue in any post-conviction motion, petition, or application?

Yes ☐ No ☒

(2) If you answer to Question (c)(1) is "Yes," state:

Type of motion or petition: _____

Name and location of the court where the motion or petition was filed:

Docket or case number (if you know):

Date of the court's decision:

Result (attach a copy of the court's opinion or order, if available):

(3) Did you receive a hearing on your motion, petition, or application?

Yes ☐ No ☐

(4) Did you appeal from the denial of your motion, petition, or application?

Yes ☐ No ☐

(5) If your answer to Question (c)(4) is "Yes," did you raise the issue in the appeal?

Yes ☐ No ☐

(6) If your answer to Question (c)(4) is "Yes," state:

Name and location of the court where the appeal was filed:

Docket or case number (if you know):

Date of the court's decision:

Result (attach a copy of the court's opinion or order, if available):

(7) If your answer to Question (c)(4) or Question (c)(5) is "No," explain why you did not appeal or raise this issue:

GROUND TWO: **See attached Petition/Memorandum/Motion**

(a) Supporting facts (Do not argue or cite law. Just state the specific facts that support your claim.):

(7) If your answer to Question (c)(4) or Question (c)(5) is "No," explain why you did not appeal or raise this issue:

GROUND THREE: **See attached Petition/Memorandum/Motion**

(a) Supporting facts (Do not argue or cite law. Just state the specific facts that support your claim.):

(b) **Direct Appeal of Ground Three:**

(1) If you appealed from the judgment of conviction, did you raise this issue?

Yes ☐ No ☒

(2) If you did not raise this issue in your direct appeal, explain why:

Same as Ground One...

(c) **Post-Conviction Proceedings:**

(1) Did you raise this issue in any post-conviction motion, petition, or application?

Yes ☐ No ☒

(2) If you answer to Question (c)(1) is "Yes," state:

Type of motion or petition:

Name and location of the court where the motion or petition was filed:

Docket or case number (if you know):

Date of the court's decision:

Result (attach a copy of the court's opinion or order, if available):

(3) Did you receive a hearing on your motion, petition, or application?

Yes ☐ No ☐

(4) Did you appeal from the denial of your motion, petition, or application?

Yes ☐ No ☐

(5) If your answer to Question (c)(4) is "Yes," did you raise the issue in the appeal?

Yes ☐ No ☐

(6) If your answer to Question (c)(4) is "Yes," state:

Name and location of the court where the appeal was filed:

Docket or case number (if you know):

Date of the court's decision:

Result (attach a copy of the court's opinion or order, if available):

(7) If your answer to Question (c)(4) or Question (c)(5) is "No," explain why you did not appeal or raise this issue:

GROUND FOUR: **See attached Petition/Memorandum/Motion**

(a) Supporting facts (Do not argue or cite law. Just state the specific facts that support your claim.):

II. Standby Counsel's Failure to Assist in Obtaining Brady Material Violates the Four Elements of Vallejo Under Effective Representation and Creates a Presumption of Prejudice

A. The Vallejo Framework in the Eleventh Circuit

The Eleventh Circuit weighed in: see United States v. Vallejo, 297 F. 3d 1154 (11th Cir. 2002)

The Eleventh Circuit established that Brady violations are evaluated based on four elements derived from Supreme Court precedent:

> "Under Brady and its progeny, the prosecution has a duty to disclose evidence favorable to the accused where the evidence is material either to guilt or to punishment. To establish a Brady violation, the defendant must show that: (1) the Government possessed evidence favorable to the defendant (including impeachment evidence); (2) the defendant did not possess the evidence nor could the defendant have obtained it with reasonable diligence; (3) the prosecution suppressed the favorable evidence; and (4) had the evidence been disclosed to the defense, a reasonable probability exists that the outcome of the proceedings would have been different." Id. at 1164 (citations omitted) (emphasis added).

B. Standby Counsel's Duty to Assist in Satisfying Brady's Requirements

Element 1: Government Possession of Favorable Evidence

The Supreme Court opined: see Brady v. Maryland, 373 US 83, 87 (1963)

> "[T]he suppression by the prosecution of evidence favorable to an accused upon request violates due process where the evidence is material either to guilt or to punishment, irrespective of the good faith or bad faith of the prosecution." Id. (emphasis added).

Here, favorable evidence included (by information and belief, as Petitioner has yet to acquire the full discovery to date):

(1) Co-Defendant's Police Interview;
(2) Government forensic report re: bottle, screwdriver, etc.;
(3) Alleged victim's statements, etc.;
(4) Co-defendant and alleged victim cell phone metadata, etc.

Element 2: Defendant's Inability to Obtain Evidence with Reasonable Diligence

Critical Point: A Pro Se defendant, by definition, lacks the legal expertise, resources, and access to obtain Brady material "with reasonable diligence" without assistance from counsel or the court.

The Supreme Court posited on point: see Bounds v. Smith, 430 US 817, 828 (1977)

> "Meaningful access to the courts is the touchstone. The fundamental constitutional right of access to the courts requires prison authorities to assist inmates in the preparation and filing of meaningful legal papers by providing prisoners with adequate law libraries or adequate assistance from persons trained in the law." Id. (emphasis added).

Even if incarcerated defendants are constitutionally entitled to assistance in preparing legal papers, surely a criminal defendant at trial is entitled to assistance from his court-appointed standby counsel in obtaining Brady material.

Application:

Petitioner, proceeding in Pro Se, had no means to compel the government to disclose Brady material without standby counsel's assistance. Standby counsel's refusal to assist left Petitioner unable to:

(1) File effective Brady motions;
(2) Identify what evidence the government possessed;
(3) Obtain court orders for production; and
(4) Review and analyze complex discovery.

Element 3: Prosecution Suppression of Favorable Evidence

The Supreme Court opined: see Kyles v. Whitley, 514 US 419, 437 (1995)

> "The individual prosecutor has a duty to learn of any favorable evidence known to the others acting on the government's behalf in the case, including the police. ...But whether the prosecution's failure to disclose was intentional or inadvertent, it is the suppression of evidence favorable to the accused that violates due process." Id. (emphasis added).

The government's failure to provide Brady material, combined with standby counsel's refusal to advocate for its production, resulted in effective suppression even if not intentional.

The Supreme Court further determined: see United States v. Bagley, 473 US 667, 682 (1985)

> "The evidence is material only if there is a reasonable probability that, had the evidence been disclosed to the defense, the result of the proceeding would have been different. A 'reasonable probability' is a probability sufficient to undermine confidence in the outcome." Id. (emphasis added).

Element 4: Reasonable Probability of Different Outcome

As demonstrated, infra (In Cumulative Error), the withheld Brady material, combined with Petitioner's inability to effectively cross-examine witnesses without discovery, creates a reasonable probability that the outcome would have been different.

C. Giglio Impeachment Evidence Was Also Withheld

The Supreme Court resonated: see Giglio v. United States, 405 US 150, 154 (1972)

> "When the 'reliability of a given witness may well be determinative of guilt or innocence,' nondisclosure of evidence affecting credibility falls within [Brady's] rule. ...[T]he jury's estimate of the truthfulness and reliability of a given witness may well be determinative of guilt or innocence, and it is upon such subtle factors as the possible interest of the witness in testifying falsely that a defendant's life or liberty may depend." Id. (emphasis added) (quoting Napue v. Illinois, 360 US 264, 269 (1959)).

The Eleventh Circuit has weighed in: see United States v. Brooks, 966 F.2d 1500, 1503 (11th Cir. 1992)

> "Impeachment evidence as well as exculpatory evidence falls within the Brady rule."

Application:

Standby counsel's failure to obtain and provide Giglio material regarding government witnesses including:

(1) Cooperation agreement (Queen for a Day);
(2) Correspondences for promises of leniency;
(3) Co-defendant and witness prior inconsistent statements;
(4) Co-defendant criminal history;
(5) Alleged victim's statements, etc.

The lack of Giglio material disclosures restricted Petitioner from effectively impeaching key witnesses, in violation of Brady/Giglio.

D. Standby Counsel's Obstruction Compounded Brady Violations

When Standby counsel refuses to assist a Pro Se defendant in obtaining Brady material, two independent constitutional violations occur:

(1) Brady violation by the government (failure to disclose); and
(2) Ineffective assistance of counsel (standby counsel's refusal to assist in obtaining disclosure).

The Eleventh Circuit pinpointed this: see Hensley v. State, 729 F.3d 1023, 1028 (11th Cir. 2013)

> "To establish a Brady violation, a defendant must prove: (1) favorable evidence; (2) suppressed by the state; and (3) material evidence. Favorable evidence includes both exculpatory and impeachment evidence." Id.

Standby counsel's refusal to assist in obtaining this evidence constructively suppresses it, even if the government technically "made it available" through discovery channels the Pro Se defendant could not navigate alone.

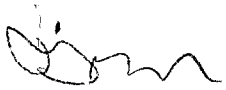
III. Standby Counsel's Refusal to Assist Constitutes Constructive Denial of Counsel Under the Sixth and Eighth Amendments, Warranting Presumed Prejudice Under Chronic and Bounds

and assist the Pro Se litigant show divided loyalty, not zealous support. In Maples v. Thomas, 565 US 266 (2012), abandonment by counsel was deemed cause to excuse procedural default. Likewise, in McKaskle v. Wiggins, 465 US 168 (1984), this court warned stand-by counsel must not destroy the core Faretta right. Here, abandonment and obstruction crossed that constitutional line.

V. Cumulative Errors Doctrine

Even if each individual error were not alone prejudicial, the cumulative effect deprived the Pro Se litigant of a fair trial. Taylor v. Kentucky, 436 US 478, 487 n.15 (1978), recognized that cumulative errors may create constitutional unfairness even when individual errors are harmless. The denial of discovery, Brady/Giglio violations, the court's failure to enforce compliance, and stand-by counsel's abandonment collectively amount to ineffective assistance in violation of the Sixth Amendment.

Submitted,



Serge Nkorina, Petitioner in Pro Se

Mailing Address:
Serge Nkorina -- 26432-509
Federal Corrections Institute--Miami
PO Box 779800
Miami, FL 33177

TAB 4

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 25-25405-CV-ALTONAGA
(CASE NO. 19-10008-CR-ALTONAGA)

SERGE NKORINA,

Movant,

v.

UNITED STATES OF AMERICA,

Respondent.
_____/

GOVERNMENT'S RESPONSE IN OPPOSITION TO MOTION TO ALTER OR AMEND THE JUDGMENT PURSUANT TO FEDERAL RULE OF CIVIL PROCEDURE RULE 59(e)

The United States of America, by and through its undersigned Assistant United States Attorney, hereby responds to Serge Nkorina's ("Movant" or "Nkorina") Motion to Alter or Amend the Judgment Pursuant to Federal Rule of Civil Procedure 59(e) (DE 12). The motion should be denied because Nkorina identifies no manifest error of law or fact and instead improperly seeks to relitigate or re-frame issues already rejected in his § 2255 motion.

Rule 59(e) relief is "an extraordinary remedy" used on to correct a "manifest error of law or fact" or to address newly discovered evidence. Movant presents neither. Instead, he attempts to re-cast his original § 2255 claims into different constitutional theories --- claims that he never raised in his original motion, that are procedurally barred, and that fail substantively. The Court's May 27, 2026 Order (DE 10) is correct, and Rule 59(e) does not permit Nkorina to reshape his motion post-judgment. For the foregoing reasons, Nkorina's motion should be denied.

I. Nkorina's Rule 59(e) Motion Improperly Seeks to Raise New TheoriesNot Presented in his § 2255 Motion

Nkorina asserts that the Court failed to construe his § 2255 motion as raising a freestanding *Brady/Giglio* due process claim, a freestanding "fundamental fairness/meaningful opportunity to present a defense" claim, or a claim of independent judicial error. None of these claims were raised in his § 2255 motion.

Rule 59(e) cannot be used to "relitigate old matters" or "raise arguments . . . that could have been raised [before] judgment." *See Arthur v. King*, 500 F.3d 1335, 1343 (11th Cir. 2007). Nkorina's § 2255 motion was framed – repeatedly and explicitly – as alleging ineffective assistance of standby counsel. His attachments and narrative focused exclusively on counsels' conduct, not on a freestanding constitutional claim directed at the Government.

The motion stated, on its face, that Nkorina sought relief based on "standby counsel's refusal to provide pre-trial discovery. . . ." (DE 1 at 4). The motion did not assert that the Government violated *Brady*. It did not identify any suppressed evidence, Government misconduct, or any due-process theory independent of standby counsels' performance. Instead, Nkorina repeatedly characterized all alleged discovery failings as Sixth Amendment ineffective assistance claims. The Court properly construed the motion exactly as Nkorina framed it. Rule 59(e) does not permit Nkorina to rewrite his motion after judgment.

II. No Freestanding *Brady* or *Giglio* Claim was Adequately Raised by Nkorina's Motion and Any Such Claim Would be Procedurally Defaulted and Meritless

A. Nkorina Never pleaded a *Brady* claim against the Government

Nkorina cites scattered references to "*Brady*" in his original motion, but each reference is embedded with an ineffective assistance theory, never as an independent due process claim. The motion never alleged that prosecutors suppressed evidence, never identified what specific evidence

the Government supposedly withheld, and never alleged Government misconduct or a violation of constitutional disclosure duties.

Thus, the Court correctly concluded "Movant does not adequately raise any standalone *Brady* or *Giglio* claims outside the ineffective-assistance context." (DE 10 at 4 n.8)

B. Any Standalone *Brady* Claim is Procedurally Defaulted

A *Brady* claim was available on direct appeal. Movant had two appellate attorneys and filed pro se submissions. He never raised a *Brady* claim. He offers no cause for failing to do so. His Rule 59(e) motion cannot circumvent this default.

C. Any *Brady* Claim Fails on the Merits

The record refutes Nkorina's premise. As demonstrated in the Government's response (DE 5):

- Nkorina admitted at a September 3, 2021 hearing that he had reviewed discovery with standby counsel. (DE 5-1
- Attorney Lopez's sworn affidavit confirms multiple in-person discovery review sessions with Nkorina. (DE 5-2).
- Nkorina was restricted from possessing physical copies due to a protective order, but he was not denied access. (DE 5-2).

Nkorina therefore cannot satisfy the elements of a *Brady* claim.

III. Nkorina Never Raised a Freestanding "Fundamental Fairness/Meaningful Opportunity to Present a Defense" Claim

Nkorina now asserts the Court should have construed his motion as alleging that the lack of discovery deprived him of a "meaningful opportunity to present a complete defense." However, in his § 2255 motion he only alleged only that standby counsel refused to provide discovery—

again, a Sixth Amendment ineffective-assistance theory. Rule 59(e) cannot be used to introduce new constitutional claims that were not raised in the underlying § 2255 motion.

Even if construed, the claim would fail because:

- Movant had access to discovery through multiple review sessions.
- The protective order lawfully limited his physical retention of sensitive materials.
- The Court directed him to obtain discovery through counsel.
- He actively engaged with the discovery he reviewed, as reflected in his courtroom statements.

There was no deprivation of a meaningful opportunity to present a defense.

IV. The Court did not Misstate Fact in Holding that Nkorina Raised No Independent Claim of Court Error

Nkorina argues that the Court made a "manifest factual error" in stating he raised no independent claim of judicial error. But his motion never identified any judicial misconduct, any constitutional violation by the Court, or any error aside from counsels' alleged failures. Nkorina's filing of procedural motions in his criminal case does not transform those motions into constitutional claims in the § 2255 petition.

The Court was correct. There is no factual error to correct under Rule 59(e).

V. Clisby was not Violated Because No Additional Claims Were Raised

Nkorina asserts the Court violated *Clisby v. Jones*, 960 F.2d 925 (11th Cir. 1992) by failing to resolve his supposed standalone *Brady* fundamental-fairness claims. This argument fails. *Clisby* applies only to claims actually raised. The Court resolved every claim that Nkorina raised—each ineffective assistance claim was adjudicated. Rule 59(e) cannot be used to manufacture new claims solely to invoke *Clisby*. There was no *Clisby* error.

VI. Nkorina's Cumulative Error Argument Fails Because No Errors Exist

Nkorina argues that the Court incorrectly found "nothing to accumulate." The Court's conclusion was correct: Nkorina identified no constitutional errors. His alleged discovery complaints are non-constitutional procedural issues. Nkorina's ineffective assistance claims failed because he elected to represent himself. Absent underlying errors, cumulative-error doctrine does not apply.

VII. Nkorina has Not Met the Standard for a Certificate of Appealability

Nkorina alternatively seeks amendment of the judgment to grant a certificate of appealability. A COA requires a showing that "reasonable jurists would find the district court's assessment of the constitutional claims debatable or wrong." *Slack v. McDaniel*, 529 U.S. 473, 484 (2000). No reasonable jurist could debate Nkorina's failure to raise standalone constitutional claims, the fact that he admitted receiving discovery in open court, or the bar against ineffective-assistance claims for standby counsel. A COA is unwarranted.

CONCLUSION

Nkorina's Rule 59(e) motion identifies no manifest error of law or fact. It improperly attempts to expand the scope of his § 2255 petition, raises new constitutional theories, and relitigates settled questions. The Court correctly denied the § 2255 motion, and no basis exists to alter or amend the judgment. The Rule 59(e) motion should be **DENIED** in its entirety.

Respectfully submitted,

JASON A. READING QUIÑONES
UNITED STATES ATTORNEY

BY: S/Marc Chattah
Marc Chattah
Assistant U.S. Attorney
Florida Bar No. 27586

U.S. Attorney's Office
500 E. Broward Blvd.
Ft. Lauderdale, FL 33394
Tel. (561) 632-3712
Email: Marc.Chattah@usdoj.gov

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing response will be sent via U.S. mail to Serge Nkorina, Register Number 26432-509, at Miami FCI.

S/Marc Chattah
Marc Chattah
Assistant U.S. Attorney